

Oklahoma Well Spacing

Drilling and spacing units · 52 O.S. § 87.1

What spacing is in Oklahoma

Spacing sets how many wells may be drilled into a common source of supply and where they may sit. The point is to prevent waste and to protect the correlative rights of everyone with an interest in the reservoir, so one owner cannot drain it at the neighbors' expense. Oklahoma has regulated well spacing since the Well Spacing Act of 1935, and today the Oklahoma Corporation Commission handles it by laying out drilling and spacing units.

Drilling and spacing units

The Commission establishes a drilling and spacing unit for a common source of supply under [52 O.S. § 87.1](#). It fixes the size and shape of the unit and, as a general rule, allows one well per unit until it authorizes more. Unit size follows the reservoir: shallow oil is often spaced on 40 or 160 acres, while deeper gas is commonly spaced on 640 acres, a full section. Each owner shares in production in proportion to net acres in the unit, wherever in the unit the well is drilled.

Oklahoma spacing	Detail
Agency	Oklahoma Corporation Commission
Authority	52 O.S. § 87.1 (spacing regulated since the Well Spacing Act of 1935)
Unit	A drilling and spacing unit for a common source of supply, one well per unit as a rule
Typical sizes	40 or 160 acres for oil, 640 acres for deep gas, set by the Commission for the reservoir
Establishing a unit	Application to the Commission, notice, a hearing before an Administrative Law Judge, then an order (OAC 165:5-7-6)

More wells and off-pattern wells

Situation	What happens
Increased density	An increased density order authorizes additional wells in the unit beyond the first.
Location exception	Where a well cannot meet the standard location the order sets, the operator applies for a location exception.
Horizontal / multiunit	A horizontal unit can be laid over the existing vertical units in the same formation. This ties into pooling; see the Oklahoma Pooling reference.

Spacing comes before pooling

Spacing is the step before pooling. Once the unit exists, the operator brings the owners in the unit together by lease or agreement, and forces the holdouts in through a pooling order. See the Oklahoma Pooling reference for that process.

Spacing also drives Oklahoma's statutory Pugh clause: for a unit of 160 acres or more, leasehold outside the unit releases 90 days after the primary term under [§ 87.1\(b\)](#) (see the Pugh Clauses reference).

Notes for title work

Topic	Note
Pull the spacing order	Get the spacing order for the section and common source of supply. It gives the unit size, the permitted well, and the order number you will see referenced in the pooling order.
Read the full spacing history	Spacing orders often amend earlier ones rather than replace them, and a section can be spaced differently for different formations and depths. Read the whole history, not just the latest order, to see the current picture across all sources of supply.
Common source of supply	Spacing is set per reservoir. The same surface acreage can carry different units for different formations, so confirm which source of supply the order covers.
Primary term and the Pugh clause	With the unit size and the lease primary term date, you can tell whether acreage outside a 160-acre-or-larger unit has released under § 87.1(b).

This reference is prepared for use by landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified oil and gas counsel. Statutes, rules, and Commission practice change and turn on the facts of each unit and chain of title. Confirm any conclusion against the current statutes, rules, and orders, and refer complex or disputed matters to a licensed attorney in the state involved. Citations are to 52 O.S. § 87.1 and the Commission's Oil and Gas rules (OAC 165:5).